position is same with regard to the removal of its members as well. On the other hand, US has separate machineries for the conduct of elections at the federal and state levels.

14. Veto Over State Bills

The governor is empowered to reserve certain types of bills passed by the state legislature for the consideration of the President. The President can withhold his assent to such bills not only in the first instance but also in the second instance. Thus, the President enjoys absolute veto (and not suspensive veto) over state bills. But in US and Australia, the states are autonomous within their fields and there is no provision for any such reservation.

CRITICAL EVALUATION OF THE FEDERAL SYSTEM

From the above, it is clear that the Constitution of India has deviated from the traditional federal systems like US, Switzerland and Australia and incorporated a large number of unitary or non-federal features, tilting the balance of power in favour of the Centre. This has prompted the Constitutional experts to challenge the federal character of the Indian Constitution. Thus, KC Wheare described the Constitution of India as "quasi-federal". He remarked that "Indian Union is a unitary state with subsidiary federal features rather than a federal state with subsidiary unitary features."[6]

According to K Santhanam, the two factors have been responsible for increasing the unitary bias (tendency of centralisation) of the Constitution. These are: **(i)** the dominance of the Centre in the financial sphere and the dependence of the states upon the Central grants; and **(ii)** the emergence of a powerful erstwhile planning commission which controlled the developmental process in the states[6a]. He observed: "India has practically functioned as a unitary state though the Union and the states have tried to function formally and legally as a federation."[7]

However, there are other political scientists who do not agree with the above descriptions. Thus, Paul Appleby[8] characterises the Indian system as "extremely federal". Morris Jones[9] termed it as a "bargaining federalism". Ivor Jennings[10] has described it as a "federation with a strong centralising tendency". He observed that "the Indian Constitution is mainly federal with unique safeguards for enforcing national unity and growth". Alexandrowicz[11] stated that "India is a case *sui generis* (i.e., unique in character). Granville Austin[12], an American constitutional expert, called the Indian federalism as a "cooperative federalism". He said that though the Constitution of India has created a strong Central government, it has not made the state governments weak and has not reduced them to the level of administrative agencies for the execution of policies of the Central government.

On the nature of the Indian Constitution, Dr. B.R. Ambedkar made the following observation in the Constituent Assembly: "The Constitution is a Federal Constitution in as much as it establishes a dual polity. The Union is not a league of states, united in a loose relationship, nor are the states the agencies of the Union, deriving powers from it. Both the Union and the states are created by the Constitution, both derive their respective authority from the Constitution."[13] He further observed: "Yet the Constitution avoids the tight mould of federalism and could be both unitary as well as federal according to the requirements of time and circumstances".[14] While replying to the criticism of over-centralisation in the Constitution, he stated: "A serious complaint is made on the ground that there is too much centralisation and the states have been reduced to municipalities. It is clear that this view is not only an exaggeration but is also founded on a misunderstanding of what exactly the Constitution contrives to do. As to the relations between the Centre and the states, it is necessary to bear in mind the fundamental principle on which it rests. The basic principle of federalism is that the legislative and executive authority